

Court No. - 29

Case :- WRIT - C No. - 52187 of 2011

Petitioner :- Jai Prakash Dixit

Respondent :- DvvnI And Another

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Rajesh Tripathi

Hon'ble Vineet Saran,J.

Hon'ble Vijay Prakash Pathak,J.

Sri Rajesh Tripathi has accepted notice for the respondents. He prays for and is granted a month's time to file counter affidavit. The petitioner shall have two weeks thereafter to file rejoinder affidavit. List immediately thereafter.

The submission of the learned counsel for the petitioner is that an inspection was conducted in the premises of the petitioner on 11.7.2010 which was with regard to the consumption of electricity. It is stated that the said inspection was conducted in terms of the Electricity Supply Code, 2005. After the inspection, a check meter was installed in the premises of the petitioner. Thereafter on 17.9.2010 the old meter was removed and a new meter was installed. However, in the meantime within three days of the inspection and installation of check meter, on 14.7.2010 a notice was issued to the petitioner to submit his reply as to why a recovery of Rs. 7,68,511/- be not made from him in pursuance of the irregularities found in the inspection conducted on 11.7.2010. The petitioner submits that in response thereto a reply was filed by him on 22.7.2010 and thereafter without any further notice or any order being passed, the Executive Engineer, respondent no.2, has directed recovery of Rs. 7,68,511/- on the basis of the inspection/checking conducted in the premises of the petitioner on 11.7.2010. The submission of the learned counsel for the petitioner is that in terms of Clause 5.6 (e) of The U.P. Electricity Supply Code, 2005 it was only after 7 to

15 days of the installation of the check meter that proceedings could have been initiated against the petitioner whereas in the present case the notice was issued to the petitioner within three days of the inspection. It is further submitted that reply to the notice was given by the petitioner on 22.7.2010 and without considering the aforesaid aspect as well as the reply of the petitioner, the impugned order dated 9.6.2011 has been passed. It is thus contended that the entire action of the respondents would be illegal and the impugned order is liable to be quashed.

Considering the facts and circumstances of this case and keeping in view the aforesaid submissions of the learned counsel for the petitioner, we are of the opinion that the petitioner has made out a prima facie case for grant of interim protection.

Accordingly, it is directed that recovery from the petitioner in pursuance of the order dated 9.6.2011 passed by the respondent no.2 shall remain stayed and the supply of electricity if disconnected in pursuance of the recovery notice/order, shall be restored.

Order Date :- 9.9.2011
dps

(Vijay Prakash Pathak,J) (Vineet Saran, J)

Court No. - 39

Case :- WRIT - C No. - 52187 of 2011

Petitioner :- Jai Prakash Dixit

Respondent :- DvvnI And Another

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- Rajesh Tripathi,S.C.

Hon'ble Salil Kumar Rai,J.

Hon'ble Arun Kumar Singh Deshwal,J.

On a request made on behalf of counsel for the petitioners, the matter is adjourned for the day.

List again in the next cause list showing the name of Shri Baleshwar Chaturvedi, Advocate as the counsel for the respondents.

Order Date :- 18.5.2023

Vipasha



2026:AHC:37500-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 52187 of 2011

Jai Prakash Dixit

.....Petitioner(s)

Versus

Dvynl And Another

.....Respondent(s)

Counsel for Petitioner(s) : B.C. Rai

Counsel for Respondent(s) : Baleshwar Chaturvedi, Rajesh Tripathi,
S.C.

Court No. - 40

HON'BLE SARAL SRIVASTAVA, J.

HON'BLE SUDHANSHU CHAUHAN, J.

1. List has been revised.
2. No one appears on behalf of petitioners to press this petition.
3. Accordingly, the writ petition is ***dismissed*** for want of prosecution.
4. Interim order, if any, stands vacated.

(Sudhanshu Chauhan,J.) (Saral Srivastava,J.)

February 19, 2026

Gaurav